COMPANY–CLIENT AGREEMENT

MOVE Private Fitness

This Company–Client Agreement ("Agreement") is entered into between **MOVE Private Fitness** ("the Company") and the undersigned client ("the Client").

By signing this Agreement, the Client confirms that they have read, understood, and agreed to all terms herein.

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1. Nature of Relationship

The Company provides personal training and wellness services through coaches engaged or contracted by the Company. The Company reserves full discretion over coach assignment, substitution, and programming methodology.

The coaching relationship is professional in nature and requires mutual respect, punctuality, and cooperation.

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2. High Care & High Challenge Philosophy

The Company's coaching methodology involves both support and challenge, including physical exertion, accountability, and performance feedback. The Client acknowledges that this approach may involve discomfort, fatigue, or physical stress and agrees to participate voluntarily.

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3. Session Duration and Attendance

- Sessions typically last **45–60 minutes**.
- Clients must be ready to train at the scheduled time.
- Arrival more than **15 minutes late** constitutes a no-show and the session will be forfeited.
- Repeated tardiness may result in program termination at the Company's discretion.
- If a coach is more than **1 minute late**, the Client may request a compensatory session by emailing **management@moveprivatefitness.com**.

4. Expiry of Sessions

- Sessions are valid only within the program period purchased.
- Unused sessions will expire upon program completion.
- A discretionary grace period of **5–10 weeks** may be granted at the Company's sole discretion.
- No extensions are guaranteed.

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5. Cancellation Policy

- A minimum of **24 hours' notice** is required for cancellations.
- Late cancellations or no-shows will be charged in full and deducted from the Client's balance.
- All cancellation decisions by the Company are final.

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6. Replacement and Substitute Sessions

- Replacement sessions do not apply to **1-on-2 or 1-on-3** packages.
- Replacement sessions must occur within the same or following week and are subject to availability.
- Online sessions may be substituted at the Company's discretion.
- The Company may assign substitute coaches as necessary.

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7. Fees and Billing

- All programs are **pre-paid and strictly non-refundable**, except where required by applicable law.
- Installment payments must be made on time. Failure to pay may result in immediate suspension or forfeiture of remaining sessions.
- The Company reserves the right to revise fees with notice.

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8. Right to Refuse or Terminate Services

The Company reserves the **absolute right**, at its sole discretion, to:

- Refuse service to any prospective client
- Suspend or terminate any ongoing program

With or without cause, including but not limited to:

- Disruptive, abusive, or inappropriate behavior
- Repeated complaints made in bad faith
- Non-compliance with coaching instructions
- Conduct that may harm the Company, its staff, or its reputation

Upon termination, any unused sessions may be forfeited without refund, except where required by law.

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9. Health Declaration and Assumption of Risk

The Client confirms that they are physically and medically fit to participate in training and have disclosed all relevant medical conditions.

The Client **voluntarily assumes all risks** associated with physical training, including but not limited to:

- Muscle strains
- Joint injuries
- Cardiovascular events
- Accidental injury

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10. Limitation of Liability, Assumption of Risk, and Release

The Client acknowledges and agrees that participation in physical training, exercise, and wellness programs involves **inherent and foreseeable risks**, including but not limited to **serious bodily injury, permanent disability, medical complications, or death**.

The Client **voluntarily and knowingly assumes all such risks**, whether known or unknown, arising from participation in the Company's services.

To the fullest extent permitted by applicable law, the Client **releases and discharges** the Company, its directors, employees, contractors, and coaches from **any and all claims, demands, losses, or liabilities** arising from participation in the programs, **except where such harm is directly caused by the Company's proven gross negligence or wilful misconduct**.

Nothing in this Agreement shall exclude or limit liability where such exclusion is prohibited by law.

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11. Indemnity

The Client agrees to **indemnify and hold harmless** the Company from any claims, demands, damages, or legal costs arising from:

- The Client's own actions or omissions
- Breach of this Agreement
- Failure to disclose medical conditions
- Misuse of facilities or equipment

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12. Medical and Nutritional Disclaimer

- Coaching advice is **not medical advice**.
- The Client must consult a qualified physician before starting any program.
- Any supplements, medications, or substances are taken entirely at the Client's own risk.

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13. Media Release and Intellectual Property

The Client grants the Company an **irrevocable, royalty-free right** to use photographs, videos, testimonials, or other media captured during sessions for marketing and promotional purposes, without compensation or further approval.

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14. Session Tracking and Notifications

The Company may issue automated notifications regarding session usage. The Client remains responsible for monitoring their session balance.

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15. Transfer of Sessions

Sessions may be transferred subject to Company approval and may not be transferred to active clients.

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16. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance to the laws of the country in which services are rendered. The courts of that jurisdiction shall have exclusive authority.

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17. Entire Agreement

This document constitutes the entire agreement between the parties and supersedes all prior discussions or representations.